

**BEFORE THE ARBITRAL TRIBUNAL COMPRISING OF
THE SOLE ARBITRATOR SENIOR ADVOCATE N.N.P. SARDESAI
AT PANAJI, GOA**

In the matter of:

VIKRAM SHAH

...Claimant

V/s.

RIVA TRINDADE & 3 Ors.

...Respondents

**NOTES OF ARGUMENTS ON BEHALF OF THE CLAIMANT IN OPPOSITION TO
THE APPLICATION DATED 12.06.2026 SEEKING LEAVE TO FILE ADDITIONAL
REPLY FILED BY RESPONDENT NOS. 1, 2 AND 3**

A. SYNOPSIS

1. By an application dated 12.06.2026, Respondent Nos. 1, 2 and 3 (“Respondents”) seek leave to file an “additional reply” — not to the Statement of Defence, but to the Claimant's pending application under Section 17 of the Arbitration and Conciliation Act, 1996 (“the Act”) for interim measures. This is sought nearly two years after constitution of this Hon'ble Tribunal (Order dated 07.08.2024), at a stage when the Section 17 application is ripe for final hearing and disposal, and after the Respondents have already filed a detailed and exhaustive reply to that very application.

2. The Claimant has filed a detailed Reply dated 07.07.2026 opposing the application. These Notes of Arguments amplify, for the purposes of oral submissions, the grounds already pleaded therein, with reference to the applicable legal principles.

B. POINTS ARISING FOR CONSIDERATION

- Point I — Whether an “additional reply” introducing merits-based defence is permissible within the limited scope of Section 17 proceedings.
- Point II — Whether the Respondents have discharged the burden of showing due diligence and sufficient cause for not raising this material at the appropriate stage.
- Point III — Whether the application, filed after nearly two years and at the stage of final hearing, is barred by delay and constitutes an abuse of process.
- Point IV — Whether the application is rendered redundant and unnecessary by the Respondents' own pending application for production of the very same documents.

- Point V — Whether the balance of convenience and the test of comparative prejudice favour rejection of the application.
- Point VI — Whether the internal inconsistency in the application (misdescription of the Claimant) reinforces the want of bona fides.

C. POINT I: SCOPE OF SECTION 17 DOES NOT PERMIT A MERITS-BASED “ADDITIONAL REPLY”

3. It is well settled that an application under Section 17 of the Act is required to be decided on a prima facie view, applying the well-known triple test of (i) a prima facie case, (ii) balance of convenience, and (iii) irreparable injury — the same test applicable to interlocutory injunctions generally, and not on a detailed adjudication of the merits of the dispute.

- *Wander Ltd. v. Antox India (P) Ltd.*, 1990 Supp SCC 727 — *laying down the triple test for grant of interlocutory relief.*
- *Sundaram Finance Ltd. v. NEPC India Ltd.*, (1999) 2 SCC 479 — *recognising that interim protection under the Act is to preserve the subject-matter and efficacy of the eventual award, not to determine rights finally.*
- *Essar House Pvt. Ltd. v. Arcelor Mittal Nippon Steel India Ltd.*, (2022) 17 SCC 246 — *while the tribunal/court is not straitjacketed by the Code of Civil Procedure, the exercise of power remains guided by these settled principles of prima facie case, balance of convenience and irreparable harm.*

4. Paragraph 6 of the Respondents' application itself discloses that the proposed additional reply is intended to elaborate defences on the legal effect of the Articles of Association, the status of Respondent No. 2 as an alleged moiety holder, the effect of the Joint Venture Agreement dated 25.04.2014, and the maintainability of the claims. These are quintessentially final-hearing issues going to the merits of the dispute, to be tried on evidence — they have no place in a summary Section 17 proceeding, and permitting them at this stage would convert an interlocutory application into a mini-trial, defeating the very object of interim protection.

D. POINT II: NO DUE DILIGENCE OR SUFFICIENT CAUSE HAS BEEN SHOWN

5. While Section 19(1) of the Act frees an arbitral tribunal from being bound by the Code of Civil Procedure, 1908, the underlying principle embodied in the proviso to Order VI Rule 17 CPC — that a party seeking to introduce new material at a late stage must show that, despite

due diligence, it could not have raised the matter earlier — reflects a basic safeguard against dilatory tactics that is equally relevant to the tribunal's exercise of its procedural discretion under Section 19(3), read with the mandate of equal treatment and full opportunity under Section 18.

- *Kailash v. Nanhku*, (2005) 4 SCC 480 — the proviso restricting late amendments is a safeguard against amendments sought merely to delay proceedings; a higher threshold of scrutiny and demonstrated due diligence is required once the matter has reached an advanced stage.
- *Baldev Singh v. Manohar Singh*, (2006) 6 SCC 498 — the relevant stage for heightened scrutiny includes the stage of final hearing and addressing of arguments, which is precisely the stage the Section 17 application has reached in the present proceedings.

6. The application is conspicuously silent on: (a) when and how the documents were allegedly suppressed by the Claimant; (b) the exact date and manner in which the Respondents came to know of or obtain them; (c) what steps of due diligence were taken to procure them earlier; and (d) why they could not have been produced along with the detailed reply already filed to the Section 17 application. In the absence of this foundational disclosure, no case for leave is made out.

E. POINT III: THE APPLICATION IS BELATED AND AN ABUSE OF PROCESS

7. The Tribunal was constituted on 07.08.2024. The Respondents filed a comprehensive Statement of Defence and thereafter a detailed reply to the Section 17 application, having had full and ample opportunity to place all facts and documents on record. The present application comes nearly two years later, on 12.06.2026, precisely when the Section 17 application is ripe for final arguments — a timing that speaks for itself and is consistent only with an intention to derail or substantially delay adjudication of the urgent interim application.

8. The Preamble to the Act and the scheme of Sections 18 and 19 recognise speedy, fair and cost-effective resolution as the central object of arbitration. The wide procedural discretion conferred on the Tribunal under Section 19(3) must be exercised reasonably and in furtherance of that object — equality of opportunity under Section 18 is not a licence for open-ended, repeated rounds of pleadings calculated to hold up proceedings.

F. POINT IV: THE APPLICATION IS REDUNDANT AND UNNECESSARY

9. The Respondents have, on their own showing, already taken out a separate application for production of the very same documents. That application, if maintainable, can be heard and decided on its own merits without in any manner holding up or delaying the hearing and disposal of the urgent Section 17 application. The present application seeking leave to file an additional reply is therefore wholly unnecessary and duplicative, and appears calculated to create a parallel track for placing the same material on record without awaiting the outcome of the production application — itself indicative of want of bona fides.

G. POINT V: BALANCE OF CONVENIENCE AND COMPARATIVE PREJUDICE FAVOUR REJECTION

10. No prejudice, much less irreparable prejudice, would be caused to the Respondents if the application is rejected — their Statement of Defence, their detailed reply already on record, and the pending production application (if pursued) adequately protect their position. Conversely, the Claimant's Section 17 application seeks protective and preservative interim relief; any further delay in its hearing and disposal risks rendering it infructuous and causing prejudice that cannot be adequately compensated in monetary terms. The balance of convenience and the comparative-prejudice test, integral to the triple-test framework applicable to interim relief, therefore weigh decisively against grant of leave.

H. POINT VI: INTERNAL INCONSISTENCY REINFORCES WANT OF BONA FIDES

11. Paragraph 1 of the application itself erroneously refers to “Mr. Pascoal Trindade, the Claimant”, directly contrary to the cause title, where Vikram Shah is arrayed as the Claimant. This is not a trivial slip; it reflects the casual and non-serious manner in which the application has been prepared, and reinforces the inference that it has been filed without proper application of mind and principally to delay the proceedings.

I. PRAYER

12. For the reasons set out above and in the Claimant's Reply dated 07.07.2026, it is most respectfully submitted that this Hon'ble Tribunal be pleased to:

- dismiss the application dated 12.06.2026 filed by Respondent Nos. 1, 2 and 3 seeking leave to file an additional reply, with exemplary costs;

- direct that the Claimant's application under Section 17 of the Act be heard and finally disposed of expeditiously on the basis of the pleadings, documents and material already on record; and
- pass such further orders as this Hon'ble Tribunal may deem fit and proper in the facts and circumstances of the case.

Advocate for the Claimant

